

UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF MINNESOTA

JOSEPH KIRCHNER,
Plaintiff,

v.

KEITH ELLISON, in his official
capacity as Attorney General of
the State of Minnesota,
Defendant.

Case No. 0:26-cv-02594-LMP-DJF

**AFFIDAVIT IN SUPPORT OF MOTION TO
PROCEED IN FORMA PAUPERIS ON APPEAL**

I, Joseph Kirchner, am the plaintiff in this case and declare that I am unable to pay the costs of these proceedings and that I am entitled to the relief requested. I declare under penalty of perjury that the information below is true and understand that a false statement may result in a dismissal of my claims.

Issues on Appeal

I intend to present the following issues on appeal, each preserved in the Complaint, the opposition briefing (ECF No. 15) and the Rule 59(e) motion:

a. Whether the district court erred in dismissing for lack of Article III standing by characterizing the Complaint as a demand that the Attorney General investigate and prosecute third parties, where the sole paragraph the court cited for that characterization expressly preserves "the proper exercise of prosecutorial discretion" and asks only that the denial of Plaintiff's petition rest on the law as enacted rather than on a false statement of law (ECF No. 27 at 4–5; ECF No. 1 ¶ 96).

b. Whether a categorical disclaimer of statutory authority conferred by Minn. Stat. §§ 8.31, 8.32 and 299C.061, stated as the office's standing position and applied to dispose of Plaintiff's petition, is an ongoing violation of law reviewable under *Ex parte Young*, rather than an exercise of prosecutorial discretion complete at the time of the letter (ECF No. 27 at 5–7).

c. Whether the addressee of a false official statement of an office's legislated authority, deployed to dispose of his own petition, has standing to challenge it, where he is the object of the governmental action complained of and the relief sought would redress the injury by requiring a decision on the law as enacted.

d. Whether *Pennhurst State School & Hospital v. Halderman*, 465 U.S. 89 (1984), bars federal claims because their predicate involves a question of state law; and whether a dismissal for lack of jurisdiction may be entered with prejudice or without stating that it is without prejudice (ECF No. 27 at 6, 8; ECF No. 28).

e. Whether the district court abused its discretion in denying leave to amend (ECF No. 27 at 8 n.2) and leave to file a sur-reply (ECF No. 27 at 4 n.1).

Question 1. Income

For both you and your spouse, estimate the average amount of money received from each of the following sources during the past 12 months. Adjust any amount that was received weekly, biweekly, quarterly, semiannually, or annually to show the monthly rate. Use gross amounts, that is, amounts before any deductions for taxes or otherwise.

Income source	Average monthly amount, past 12 months — You	Spouse	Amount expected next month — You	Spouse
Employment	\$0	\$N/A	\$0	\$N/A
Self-employment	\$0	\$N/A	\$0	\$N/A
Income from real property (such as rental income)	\$0	\$N/A	\$0	\$N/A
Interest and dividends	\$0	\$N/A	\$0	\$N/A
Gifts	\$0	\$N/A	\$0	\$N/A
Alimony	\$0	\$N/A	\$0	\$N/A
Child support	\$0	\$N/A	\$0	\$N/A

Retirement (such as social security, pensions, annuities, insurance)	\$0	\$N/A	\$0	\$N/A
Disability (such as social security, insurance payments)	\$0	\$N/A	\$0	\$N/A
Unemployment payments	\$98.17	\$N/A	\$0	\$N/A
Public assistance (such as welfare)	\$0	\$N/A	\$0	\$N/A
Other (specify): none	\$0	\$N/A	\$0	\$N/A
Total monthly income	\$98.17	\$N/A	\$0	\$N/A

Question 2. Employment History, Past Two Years

Most recent first; gross monthly pay before deductions.

Employer	Address	Dates of employment	Gross monthly pay
CommonBond Communities	1080 Montreal Avenue, Saint Paul, MN 55116	June 2024 – June 2025	\$4,344
Accessible Space, Inc.	2550 University Avenue W, Suite 330N, Saint Paul, MN 55114	February 2023 – May 2024	\$4,575

Question 3. Spouse's Employment History, Past Two Years

Employer	Address	Dates of employment	Gross monthly pay
N/A			

Question 4. Cash and Accounts

How much cash do you and your spouse have? \$40.00

Financial institution	Type of account	Amount you have	Amount your spouse has
U.S. Bank	Checking	-\$67.26	\$N/A

Huntington Bank	Checking	\$0.46	\$N/A
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Question 5. Assets

Clothing and ordinary household furnishings are not listed.

Asset	Value
Home	none
Other real estate	none
Motor vehicle #1 — make and year: Chevrolet, 2014; model: Cruze; registration #: HCB399	\$6,000
Motor vehicle #2 — make and year: Chevrolet, 1997; model: K1500; registration #: 1RM905	\$4,000
Other assets: 12-foot fishing boat	\$1,500
Other assets: none	\$0

Question 6. Money Owed to You or Your Spouse

Person, business or organization owing money	Amount owed to you	Amount owed to your spouse
none	\$0	\$N/A

Question 7. Persons Who Rely on You or Your Spouse for Support

Name (or, if under 18, initials only)	Relationship	Age
none	—	—

Question 8. Average Monthly Expenses

Amounts paid by a spouse shown separately; converted to monthly.

Expense	You	Your spouse
Rent (apartment). Real estate taxes included? N/A.	\$1,240	\$N/A

Property insurance included? N/A		
Utilities (electricity, heating fuel, water, sewer, and telephone)	\$255	
Home maintenance (repairs and upkeep)	\$0	
Food	\$200	
Clothing	\$50	
Laundry and dry-cleaning	\$40	
Medical and dental expenses	\$0	
Transportation (not including motor vehicle payments)	\$250	
Recreation, entertainment, newspapers, magazines, etc.	\$0	
Insurance (not deducted from wages or included in mortgage payments): homeowner's or renter's	\$0	
Insurance: life	\$0	
Insurance: health	\$0 (uninsured)	
Insurance: motor vehicle	\$45	
Insurance: other	\$0	
Taxes (not deducted from wages or included in mortgage payments) (specify): none	\$0	
Installment payments: motor vehicle	\$0	
Installment payments: credit card (name): U.S. Bank	\$450	
Installment payments: department store (name): none	\$0	
Installment payments: other	\$0	
Alimony, maintenance, and support paid to others	\$0	
Regular expenses for operation of business, profession, or farm (attach detailed statement)	\$0	
Other (specify): underground garage space leased separately from my building's management (separate lease)	\$45	
Total monthly expenses	\$2,575	\$N/A

Question 9. Expected Changes

Do you expect any major changes to your monthly income or expenses or in your assets or liabilities during the next 12 months? Yes. If yes, describe: I am actively seeking

employment in my field and expect to obtain it within the coming weeks; when I do, my monthly income will increase and I will be able to meet my expenses without selling personal property.

Question 10. Money Spent on This Lawsuit

Have you spent, or will you be spending, any money for expenses or attorney fees in conjunction with this lawsuit? Yes. If yes, how much? \$405 — the filing fee for this action, paid May 12, 2026 (receipt no. 4-11737), plus printing and postage of approximately \$180. No attorney fees.

Question 11. Other Information That Will Help Explain Why You Cannot Pay the Costs of These Proceedings

I have had no employment income during the past year, which I have spent litigating this matter and the prior related action without counsel and at my own expense; my only income in that period was unemployment compensation, which ended in November 2025: two monthly payments of \$589 fall within the twelve-month period, an average of \$98.17 per month; I expect no income next month. My savings are exhausted. The \$605 filing fee for my prior appeal (No. 26-1615) was paid on April 1, 2026 from those savings, which are now gone. As of the date of this affidavit I have \$40 in cash, one bank account overdrawn by \$67.26, and one account holding \$0.46. I am meeting my expenses by selling personal belongings and am actively seeking employment in my field of experience. I have not filed for bankruptcy and I receive no public assistance.

In June 2025 my father lent me \$8,000 by check dated June 16, 2025, which I deposited to my account; I have the deposit record and will provide it on request. I also owed him approximately \$2,000 from an earlier loan. In August 2026 I transferred title to a 2023 Sea-Doo RXP-X personal watercraft to my father in repayment of those debts, which totaled approximately \$10,000. The watercraft has hull damage from an insurance-covered repair that

the repair shop did not complete correctly and has refused to redo; it cannot be sold until it is repaired, and in its current condition it is worth approximately \$8,000. I have photographs of the damage and the repair records and will provide them on request. Because my father has no room for it, it is kept in the underground garage space I lease for \$45 per month, which is less than commercial storage would cost. It will be sold once repaired, and the proceeds belong to my father. I received nothing else in the transaction and hold no interest in it.

Question 12. Legal Residence

City and state of legal residence: Edina, Minnesota. Daytime phone number: (612) 552-2122. Age: 36. Years of schooling: 14.

DECLARATION

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct. 28 U.S.C. § 1746.

Executed on September 21, 2026, at Edina, Minnesota.

/s/ Joseph Kirchner
 Joseph Kirchner
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 legal@lawsofexistence.com
Plaintiff-Appellant, Pro Se

Dated: September 21, 2026